

House File 945

H-1123

1 Amend House File 945 as follows:

2 1. Page 1, by striking lines 6 through 8 and inserting <or
3 property ~~pursuant to section 704.4~~ is immune from criminal ~~or~~
4 prosecution, criminal liability for all damages, and civil
5 liability for all damages incurred by the aggressor pursuant to
6 the application of reasonable force.>

7 2. Page 1, line 12, after <immune> by inserting <from
8 criminal prosecution>

9 3. Page 1, after line 22 by inserting:

10 <4. A defendant in a criminal action may raise any defense
11 or immunity granted by this chapter as a trial defense. The
12 denial of a defendant's pretrial motion under this section
13 shall not preclude the defendant's right to raise any
14 affirmative defense or immunity at trial.>

OLSON of Polk